

25STCV22236 25STCV22236

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C07%2F16%2F2026

Source SHA-256: 62ac2a8253ad84460f4f6717ba1028f269ecdee396fc00675607a67957547cd8

Case Number: 25STCV22236 Hearing Date: July 16, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV22236

CENTURY

CITY MALL, LLC, A DELAWARE LIMITED LIABILITY COMPANY vs DIGITAL BRANDS GROUP, INC., A DELAWARE CORPORATION, et al.

July

16, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO COMPEL COMPLIANCE WITH DEFENDANT'S AGREEMENT TO PRODUCE DOCUMENTS TO FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT

AND WITH CODE OF CIVIL PROCEDURE SECTION 2031.280. PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES

TO FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT.

RULING:

First, the Court grants the
Motion to Compel Compliance with Agreement to Produce.

On or before July 21, 2026,
Defendant DIGITAL BRANDS GROUP, INC. shall produce documents, without
objections, and in full compliance with Defendant's agreement to produce
documents to First Set of Requests for Production of Documents numbers
specified in Plaintiff's "Supplemental Brief in Support of Plaintiff's
Unopposed Motion to Compel Compliance with Defendant's Agreement to Produce
Documents...", pursuant to the California Discovery Act (Code Civ. Proc. §
2016.010 et seq.).

Second, the Court grants
the Motion to Compel Further Document Responses as to the request for Privilege
Logs but denies it as to the request for Tax Returns.

On or before July 21,
2026, Defendant DIGITAL BRANDS GROUP, INC. shall serve the Privilege Log.

Plaintiff to give notice.

I.

BACKGROUND

On July 29, 2025, CENTURY
CITY MALL, LLC (Plaintiff) filed a Complaint against DIGITAL BRANDS GROUP, INC (Defendant),
"FOR ALTER EGO ACTION ON JUDGMENT."

Plaintiff alleges that it
seeks to add Defendant as an alter ego to a Judgment against Plaintiff's former
tenant Bailey 44, LLC, for over \$1.4 million.

On June 5, 2026, Plaintiff
filed the Motion to compel Defendant to produce all documents as agreed, and

Plaintiff reports that Defendant has not produced all documents it agreed to.

Defendant has filed no
Opposition to that Motion.

On June 5, 2026,
Plaintiff filed the Motion to Compel Further Responses to First Set of Requests
for Production of Documents from Defendant.

In an Opposition filed
July 2, 2026, Defendant briefly argues that the requested tax returns do not
exist, and the privilege logs would be too burdensome.

II.

LEGAL STANDARD

A motion to compel
compliance as agreed with a request for production of documents is based upon a
showing that the respondents failed “to permit an inspection ‘in accordance
with that party’s statement of compliance.’” (Standon Co. v. Superior Court (1990) 225 Cal.App.3d 898, 903. See also Code
Civ. Proc., § 2031.320,
subd. (a).) A separate motion to compel production of documents as agreed in
responses, cannot be substituted for a motion to compel further responses. (Ibid.)

Where respondents object
or respond inadequately to discovery requests, a motion lies to compel further
responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court
(2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to
compel further responses lies “[o]n receipt of a response to an inspection
demand....”].) A propounding party’s remedy when it deems objections in discovery
responses to be without merit is to move for an order compelling further
responses. (Catalina Island Yacht Club v. Superior Court (2015) 242
Cal.App.4th 1116, 1127.)

III.

ANALYSIS

A.

Document Production as Agreed

Plaintiff states that

Defendant has produced additional documents after the Motion's filing thereby resolving some issues, but nevertheless remaining documents have not been produced, as specified in the "Supplemental Brief in Support of Plaintiff's Unopposed Motion to Compel Compliance with Defendant's Agreement to Produce Documents"

"If the party fails to

make a production in accordance with its statement of compliance, the opposing party may file another motion to compel seeking compliance." (Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033 [citing Code Civ. Proc., § 2031.320].)

"Any documents or

category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond." (Code Civ. Proc., § 2031.280, subd. (a).)

Notwithstanding

supplemental productions, the Motion is granted, given Defendant's reported failures to produce some remaining documents as was agreed in discovery responses.

B.

Further Document Responses

Plaintiff requests (1) Defendant's

federal and state tax returns for its subsidiary BAILEY 44, LLC (BAILEY) as to which Plaintiff has a judgment in another case and (2) a privilege log concerning attorney-client communications since 2020 with the attorneys that represented Bailey's interests in that lawsuit.

Defendant responds that (1)

Baily has no tax return because there has been a consolidated tax return of entities and Defendant's other affiliated companies can assert privacy rights and the tax return privilege, and (2) "[w]hatever relevance such a privilege log might have is vastly outweighed by the substantial burden of preparing it."

The Reply Declaration of

Meegan Maczek filed July 9, 2026, updates about additional supplemental responses and ongoing meeting and conferring.

“A party is entitled to take the testimony of his opponent before trial for the purpose of discovery. [Citation.] The party who is examined is required to answer fairly all proper questions which are put to him, but he is under no obligation to volunteer information or to disclose relevant and material matters which are not asked for.” (Meyer v. Cooper (1965) 233 Cal.App.2d 750, 754 [addressing depositions]. Cf. Great Am. Ins. Cos. v. Gordon Trucking, Inc. (2008) 165 Cal.App.4th 445, 453 [“The interrogatories cited do not ask generally what caused the fire; they ask specifically for information about any malfunction....”].) Whether a discovery request is stated with reasonable particularity, enabling a reasonably adequate response, or it needs to be rephrased, is for court determination. (Flora Crane Serv., Inc. v. Superior Ct. In & For City & Cnty. of San Francisco (1965) 234 Cal.App.2d 767, 778 [addressing interrogatories].) “If it finds some requests too ambiguous to allow intelligent reply, it may sustain objection to them or, more consistently with justice, it may order such questions to be rephrased.” (Cembrook v. Superior Ct. (1961) 56 Cal.2d 423, 430.)

“A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. [Citation.] Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.” (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783. Accord, Field v. U.S. Bank Nat'l Assn. (2022) 79 Cal.App.5th 703, 708.)

“[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App. 5th 1011, 1039.) (Underscoring added.) “The permissible scope of discovery in general is not as broad with respect to nonparties as it is with respect to parties.” (Catholic Mut. Relief Soc'y v. Superior Court (2007) 42 Cal.4th 358, 366, fn. 6.)

“The corporate right to privacy is a lesser right than that held by human beings and is not considered a fundamental right.” (SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 756 [evaluating whether the corporate information appears reasonably calculated to lead to the discovery of admissible evidence, balanced against

the corporate right, with doubts about relevance generally resolved in favor of allowing the discovery].)

There is a qualified

privilege to withhold disclosure of tax returns, which is subject to implied waiver. (E.g., *Fortunato v. Superior Court* (2003) 114

Cal.App.4th 475, 482 [potential relevance alone does not render the tax-return privilege inapplicable]; *Weingarten v.*

Superior Court (2002) 102 Cal.App.4th 268, 274; *Deary v. Superior Court* (2001) 87 Cal.App.4th 1072, 1079 [tax return privilege is derived from Revenue and Taxation Code and is inaccurately

referred to as a constitutional right of privacy]; *Schnabel v. Superior Court* (1993) 5 Cal.4th 704, 721; *Wilson v. Superior Court* (1976) 63

Cal.App.3d 825, 831 [“Having initiated this action over her tax returns, plaintiff cannot interdict legitimate defenses thereto by asserting a privilege as to the very matters she has placed at issue in the litigation.”].)

Information that is an integral part of tax returns, or contained in tax returns, qualifies for the tax privilege, including documents that are required to be attached to income tax returns. (*Brown*

v. Superior Court (1977) 71 Cal.App.3d 141, 143-144.) “[T]he [tax return] privilege is waived or does not apply where (1) there is an intentional relinquishment ..., (2) the ‘gravamen of (the) lawsuit is so inconsistent with the continued assertion of the taxpayer’s privilege as to compel the conclusion that the privilege has in fact been waived ...’, or (3) a public policy greater than that of confidentiality of tax returns is involved” (*Sammur v. Sammur* (1980) 103 Cal.App.3d 557, 560.)

Here, regarding a federal

tax return, Defendant has no obligation to serve a response to a question never asked—i.e. for a consolidated tax return. But whether there is any

unconsolidated state tax return, remains unclear from the filings. Plaintiff’s

Reply, at pages 1 and, 3 through 4, argues that, under federal law,

consolidated returns contain the return of subsidiaries. However, “California

law governs discovery disputes that arise in our courts.” (*Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 130.)

Additionally, objections

of nonparties that did not file a lawsuit, would need to be addressed,

including their own corporate privacy rights and the tax return privilege.

As for the privilege log,

Defendant’s burden objection is unsupported by law. There simply is no

burdensome exception to the statutory requirement of producing a privilege log.
(Riddell, Inc. v. Superior Court
(2017) 14 Cal.App.5th 755, 772.)

IV.

CONCLUSION

The Court grants the
Motion to Produce as Agreed, and grants in part the Motion to Compel Further
Responses as to a Privilege Log, as further specified herein.